

Department Of Law (18)

- ✓ Solicits and establishes Quarterly Claims Review sessions with Brown and Brown and Golden Eye Insurance brokers and external/internal attorneys. Initiates claims review meetings when necessary.
- ✓ Monitors Standard Amusement's Playland claims and coordinates claims activities with same when required.
- ✓ Advises Finance when Property and Casualty claim matters warrant notification of a potential Workers' Compensation claim activity, or the coordination of benefits.
- ✓ Reviews contracts with the County's various attorneys and attends meetings with potential and/or contracted companies to analyze and/or modify contractual terms regarding Limitations of liability, Hold-harmless clauses, and insurance requirements, to identify and mitigate potential risk exposure.

Trains new hires on the Office of Risk Management's policies and procedures and educates them on how to identify and mitigate the exposures specifically associated with their scope of work.

Specific Accomplishments

- ✓ Significantly reduced the County's incurred premiums, while ensuring that the County's insurance coverage remained unchanged or enhanced; facilitated insurance renewal programs and ensured the County received improved carrier, broker and claims handling service on a going-forward basis.
- ✓ Enabled premium savings and facilitated insurance renewals by restructuring the Fine Arts, Crime and Westchester Community College Auto Insurance programs during Fiscal Year 2022. Such bundling of coverage proved financially beneficial during Fiscal Year 2022. Specifically, the various Fine Arts and Playland Carousel & Organ policies were restructured under 2 separate Fine Arts policies, the stand-alone crime policy was rolled under our New York Municipal Insurance Reciprocal (NYMIR) Property program, the Westchester Community College Auto policy was cancelled and the corresponding vehicles that were thereunder were rolled under the County's Paratransit motor vehicle policy.
- ✓ Developed and implemented a new Property Insurance Premium Allocation Methodology during Fiscal Year 2023 that proved

successful for FY 2024 budget projections and is being utilized for FY 2025.

- ✓ The new methodology was developed to fairly allocate premiums to departments on the basis of the involved department's insurable values, as opposed to an on-going "rough" estimate. The new methodology facilitated departments' understanding of their assumed premium obligations, established a sound rationale for Fiscal Year 2024 and 2025 and is best aligned with insurers' property insurance rating basis.
- ✓ Gained the participation of the Department of Environmental Facilities ("DEF") and DEF's Solid Waste participation in the FY 2025 Premium Allocation program -;thereby ensuring its proper premium contribution to the property program and a corresponding offset to the Office of Risk Management's budget.
- ✓ Identified a software application to be used during Fiscal Year 2024 that will help contract monitors better monitor their receipt and the accuracy of incoming Certificates of Insurance and incoming insurance policies. Likewise, it will assist the Office of Risk Management with monitoring and receiving timely Binders of Insurance, insurance policies, and endorsements. Have on-going negotiations with the service provider to determine alternate program options for the County - eg. Self-service vs full-service.
- ✓ Recommended and secured Loss of Use compensation from third parties who have damaged the County's various properties. This resulted in recovering monies not only for the County's damaged property, but for the financial loss the County suffered for the equipment being out of commission. Actual recoveries for 2023 amount to \$ 20,000 and is associated with the totaled police vehicle (total settlement was \$148,000 inclusive of the \$20,000 loss of use value)
- ✓ Successfully negotiated a better renewal premium for the County's Bee Line Liability insurance policy, during Fiscal Year 2023.
- ✓ Aggressively negotiated and secured a cyber-liability limit of \$10,000,000, subject to a Self- Insured Retention of \$500,000 (i.e. a more favorable retention than the expiring \$1,000,000) at a premium savings.

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- ✓ Aggressively negotiated timely insurance quotes from brokers and was able to quickly negotiate and review them, request Resolutions, and get the renewals before the Board of Acquisition and Contracts in a timelier manner.

The new effective date of the Board of Elections insurance policy facilitated renewal discussions during 2024 and is proving useful for FY 2025,

- ✓ Provided additional Abuse and Molestation and professional insurance requirement options quotes to the Department of Social Services to best align with their intended scope of work.

Conducted Accident Reviews and served on the Vehicle Safety Review Board. Successfully advised and educated appropriate parties of the actions needed when a County employee is involved in an accident or engaged in unsafe driver activities

Effective the second quarter of FY 24 review(ed) bid construction contracts for the Department of Transportation and established insurance and loss prevention requirements. Although the Glen Island Bridge Construction project has not yet been awarded to a contractor, the exposures of that project were fully identified and assessed.

- ✓ Gained access to BIDNET, an application that provides detailed information on the County's upcoming bid projects. Reviewing potential exposures and recommending contractual insurance requirements helps mitigate the County's exposure to lawsuits.
- ✓ Identified a variety of potential law enforcement exposures associated with prisoner transportation, WCLA-Choice Matters, police academy training, anti-trafficking task force operations, and a host of other police-related IMAs and provided best practices.
- ✓ Recommended that selected law enforcement policies should provide a minimum limit of \$5mil for moon lighting, assault and battery, excessive force, failure to render medical attention, failed CPR, false arrest, deliberate indifference, misuse of fire arms, abuse and molestation, sexual, racial and other forms of harassment and discrimination, mistakes resulting in harm to others, etc. Insurance program should also include professional, auto and General Liability as bundled or as stand-alone policies, and add a variety of insurance protections for the County of Westchester.

- ✓ Assisted miscellaneous departments with adhering to FEMA's Obtain and Demand Flood requirements and educated them on the idiosyncrasies of a flood policy.
- ✓ Reviewed the exposures associated with the Bee Line Bus Operation and Maintenance Agreement and the Airport Operation and Maintenance Agreement and identified needed coverage.
- ✓ In an effort to address risk exposures potentially associated with certain department's scope of work and to complement the County's current employee safety programs, apprised the Department of Human Resources and appropriate parties of the Public Risk Management Association's complimentary Workplace Violence Prevention webinars.

REVENUES:

- ✓ Departmental Revenues consist of charges to the 6-N Fund, to Sewer, Water, Refuse Disposal District Funds and the Westchester Community College Fund for legal services.
- ✓ Interdepartmental Revenue received from those departments for which the Law Department performs required legal service. These charges are made by hourly rates derived from the Law Department's operating costs, which are adjusted annually.

Department Of Law (18)

COUNTY ATTORNEY SERVICE INDICATORS:

	2023 Actual	2024 Estimated	2025 Planned
Number of Cases:			
Litigation Matters	5,805	5,908	6,011
Appeals, Opinions and Legislation	2,803	2,825	2,963
Contracts and Real Estate	12,484	12,650	12,870
Family Court:			
JD Extensions	300	320	350
Guardianships	270	280	280
Juvenile Delinquency cases	1,000	1,200	1,300
Juvenile Delinquency RTA Cases (implementation Oct 2018)	310	350	375
Pins and Pins Extension	127	140	175
Abuse and Neglect matters	4,000	4,200	4,400
Violations of Probation	50	70	90
Legal Consultation	570	650	700
Court Ordered Investigations	2,400	2,500	2,700
Child Support matters	15,500	15,700	16,000
Custody Appearances	650	650	650
Subpoenas, Warrant Reviews	750	800	825
Expungements/Fair Hearings	650	700	725
Permanency	2,700	2,900	3,000
Total Family Court Cases	27,277	3	31,570

RISK MANAGEMENT SERVICE INDICATORS:

	2023 Actual	2024 Estimated	2025 Planned
New Claims Investigated:*			
Medical Malpractice	2	5	5
General Liability	137	165	165
Automobile Liability	29	35	30
Auto Liability Liberty Lines	201	180	200
Para Trans/Bus Events	35	40	45
Property Claims	15	15	10
Third Party Insurance Recoveries	\$404,000	\$350,000	\$425,000
Subrogation Claims Closed	91	150	125
Contracts Reviewed	2,500	2,600	2,600
Driver Abstracts Reviewed	4,900	4,900	5,000
Safety related in-services/ meetings held	150	150	150
Volunteers Processed	630	650	650
Settled Claims	46	50	55
No Fault Transactions	10	20	25
Insurance Policies Procured	17	15	17
As noted above, our policy count remains unchanged but includes an expanded cyber liability policy.			

Department Of Law (18)

Account Class	Account Rollup Name	Expended 2023	Adopted 2024	Appropriated 2024	Projected 2024	Requested 2025	Allowed 2025
100 Annual Regular Salaries	1010 Net-Annual Regular	11,020,915	11,037,477	11,037,477	11,037,477	11,985,694	11,093,494
		11,020,915	11,037,477	11,037,477	11,037,477	11,985,694	11,093,494
101 Other Personal Services	1200 Hourly	42,955	40,000	40,000	45,000	40,000	40,000
	1400 Overtime	27,091	500	500	500	500	500
		70,046	40,500	40,500	45,500	40,500	40,500
200 Equipment	2300 Replacement	59,900	85,000	86,711	85,000	342,000	85,000
		59,900	85,000	86,711	85,000	342,000	85,000
300 Material & Supplies	3070 Book and Periodicals	385	600	600	600	1,000	1,000
	3600 Printing & Office Suppl	23,096	36,850	38,083	36,850	36,850	36,850
	3700 Postage Costs	27,027	35,250	35,250	30,250	30,250	30,250
		50,508	72,700	73,933	67,700	68,100	68,100
400 Expenses	4070 Equip Service & Rental	51,635	95,300	96,049	85,300	95,300	82,300
	4100 Membership Fees	4,259	5,000	5,000	5,000	10,000	10,000
	4110 Travel and Meals	8,545	7,000	12,000	12,000	15,000	15,000
	4160 Telephone Expenses	20,295	30,000	25,000	20,000	25,000	25,000
	4225 OSHA Safety Program	19,253	54,000	60,602	54,000	100,000	100,000
	4280 Insurance	1,189,985	1,435,375	1,435,375	1,435,375	1,435,375	1,435,375
	4360 Educational Training	30,274	40,000	40,000	40,000	40,000	40,000
	4380 Contractual Services	39,205	75,000	97,289	65,000	75,000	65,000
	4420 Technical Services	641,660	728,500	808,930	700,000	728,500	650,000
	4923 Litigation	501,710	700,000	995,736	500,000	500,000	500,000
		2,506,820	3,170,175	3,575,981	2,916,675	3,024,175	2,922,675
599 Inter-Departmental Charge	5205 Information Support Svc	1,005,896	1,030,592	1,030,592	1,030,592	1,124,575	1,061,624
	5280 Svc by Public Works	85,124	84,753	84,753	84,753	91,283	88,695
	5325 Svc by Dept of Law	23,100	25,086	25,086	25,086	24,868	24,147
		1,114,120	1,140,431	1,140,431	1,140,431	1,240,726	1,174,466
Total Expenditures		14,822,308	15,546,283	15,955,034	15,292,783	16,701,195	15,384,235

Department Of Law (18)

Account Class	Account Rollup Name	Expended 2023	Adopted 2024	Appropriated 2024	Projected 2024	Requested 2025	Allowed 2025
99S Inter-Departmental Revenue	9508S Inter Dept Billings	11,647,041	11,693,248	11,693,248	11,693,248	12,288,980	11,628,357
		11,647,041	11,693,248	11,693,248	11,693,248	12,288,980	11,628,357
	Net Expenditures	3,175,267	3,853,035	4,261,786	3,599,535	4,412,215	3,755,878
50 Departmental Income		3,876,837	4,064,907	4,064,907	4,064,907	4,251,442	4,411,283
	Total Revenues	3,876,837	4,064,907	4,064,907	4,064,907	4,251,442	4,411,283
	Net Department Total	(701,570)	(211,872)	196,879	(465,372)	160,773	(655,405)

Department Of Law (18)

Department Of Law (18_1000)

Objects of Expenditure		Expended 2023	Adopted 2024	Appropriated 2024	Projected 2024	Requested 2025	Allowed 2025
Personal Service:							
Annual-Regular:							
Administration (1000)							
County Attorney		1	1	1	1	1	1
Chief Deputy County Attorney	XIX					1	1
Special Asst. to County Attorney	XIV	1	1	1	1	1	1
Exec. Secretary to County Attorney	X	1	1	1	1	1	1
Receptionist	IV	1	1	1	1	1	1
		4	4	4	4	5	5
Litigation Bureau (1100)							
Asst. Chief Deputy County Attorney	XVIII	1	1	1	1	1	1
Deputy County Attorney	XVII		3	3	3	3	3
Associate County Attorney	XVI	4	5	5	5	5	5
Sr. Asst. County Attorney	XV	8	2	2	2	5	5
Asst. County Attorney	XIII	5	4	4	4	2	2
Program Specialist (LAW)	X	1					
Program Specialist (Trial Assistant)	X	1	2	2	2	2	2
Paralegal	VIII	1	1	1	1		
Docket and File Clerk	VIII					1	1
Legal Secretary II	VIII	2	2	2	2	2	2
Jr. Administrative Assistant	VIII					1	1
Legal Secretary I	VII	1	2	2	2	1	1
Sr. Information Systems Clerk	IV	1					
		25	22	22	22	23	23
Appeals, Opinions and Legislation (1300)							
Chief Deputy County Attorney	XIX	1	1	1	1		
Asst. CF Deputy County Attorney	XVIII		1	1	1	1	1
Deputy County Attorney	XVII	2	1	1	1	1	1
Associate County Attorney	XVI		1	1	1	1	1
Sr. Assistant County Attorney	XV	3	3	3	3	3	2

Department Of Law (18)

Department Of Law (18_1000)

Objects of Expenditure		Expended 2023	Adopted 2024	Appropriated 2024	Projected 2024	Requested 2025	Allowed 2025
Asst. County Attorney	XIII		1	1	1	1	1
Junior Administrative Assistant	VIII	1	1	1	1		
Legal Secretary I	VII		1	1	1	1	1
		7	10	10	10	8	7
Contracts (1400)							
Asst. Chief Deputy County Attorney	XVIII	1	1	1	1	1	1
Associate County Attorney	XVI	2	2	2	2	2	2
Sr. Asst. County Attorney	XV	7	7	7	7	7	7
Asst. County Attorney	XIII	1	2	2	2	2	2
Paralegal	VIII	1	1	1	1		
Docket and File Clerk	VIII					1	1
Legal Secretary I	VII	1	1	1	1	1	1
		13	14	14	14	14	14
Family Court (1500)							
Asst. Chief Deputy County Attorney	XVIII	1	1	1	1	1	1
Deputy County Attorney	XVII	3	3	3	3	3	3
Associate County Attorney	XVI		6	6	6	6	6
Sr. Asst. County Attorney	XV	10	7	7	7	4	4
Asst. County Attorney	XIII	17	14	14	14	18	17
Program Specialist (Trial Assistant)	X	1	1	1	1	1	1
Paralegal	VIII		1	1	1	1	1
Legal Secretary II	VIII	2	1	1	1	1	1
Legal Secretary I	VII	3	2	2	2	3	3
		37	36	36	36	38	37
Total Positions		86	86	86	86	88	86

Department Of Law (18)

Department Of Law (18_1000)

Account Class	Account Rollup Name	Expended 2023	Adopted 2024	Appropriated 2024	Projected 2024	Requested 2025	Allowed 2025
100 Annual Regular Salaries	1010 Net-Annual Regular	10,578,288	10,498,953	10,498,953	10,498,953	11,386,631	10,544,431
		10,578,288	10,498,953	10,498,953	10,498,953	11,386,631	10,544,431
101 Other Personal Services	1200 Hourly	22,305	40,000	40,000	45,000	40,000	40,000
	1400 Overtime	120	500	500	500	500	500
		22,425	40,500	40,500	45,500	40,500	40,500
200 Equipment	2300 Replacement	58,122	80,000	81,711	80,000	337,000	80,000
		58,122	80,000	81,711	80,000	337,000	80,000
300 Material & Supplies	3600 Printing & Office Suppl	21,765	35,350	36,583	35,350	35,350	35,350
	3700 Postage Costs	27,027	35,000	35,000	30,000	30,000	30,000
		48,792	70,350	71,583	65,350	65,350	65,350
400 Expenses	4070 Equip Service & Rental	49,767	93,000	93,749	83,000	93,000	80,000
	4100 Membership Fees	4,259	5,000	5,000	5,000	10,000	10,000
	4110 Travel and Meals	8,545	7,000	12,000	12,000	15,000	15,000
	4160 Telephone Expenses	20,295	30,000	25,000	20,000	25,000	25,000
	4360 Educational Training	30,274	40,000	40,000	40,000	40,000	40,000
	4380 Contractual Services	39,205	75,000	97,289	65,000	75,000	65,000
	4420 Technical Services	641,660	728,500	808,930	700,000	728,500	650,000
	4923 Litigation	501,710	700,000	995,736	500,000	500,000	500,000
		1,295,714	1,678,500	2,077,705	1,425,000	1,486,500	1,385,000
599 Inter-Departmental Charge	5205 Information Support Svc	970,734	1,002,679	1,002,679	1,002,679	1,091,750	1,032,246
	5280 Svc by Public Works	85,057	84,553	84,553	84,553	91,083	88,495
		1,055,791	1,087,232	1,087,232	1,087,232	1,182,833	1,120,741
Total Expenditures		13,059,131	13,455,535	13,857,684	13,202,035	14,498,814	13,236,022
99S Inter-Departmental Revenue	9508S Inter Dept Billings	11,647,041	11,693,248	11,693,248	11,693,248	12,288,980	11,628,357
		11,647,041	11,693,248	11,693,248	11,693,248	12,288,980	11,628,357
Net Expenditures		1,412,091	1,762,287	2,164,436	1,508,787	2,209,834	1,607,665

Department Of Law (18)

Department Of Law (18_1000)

Account Class	Account Rollup Name	Expended 2023	Adopted 2024	Appropriated 2024	Projected 2024	Requested 2025	Allowed 2025
50 Departmental Income		3,073,757	3,264,907	3,264,907	3,264,907	3,451,442	3,611,283
	Total Revenues	3,073,757	3,264,907	3,264,907	3,264,907	3,451,442	3,611,283
	Net Department Total	(1,661,667)	(1,502,620)	(1,100,471)	(1,756,120)	(1,241,608)	(2,003,618)

Department Of Law (18)
Risk Management (18_2000)

Objects of Expenditure		Expended 2023	Adopted 2024	Appropriated 2024	Projected 2024	Requested 2025	Allowed 2025
Personal Service:							
Annual-Regular:							
	GROUP						
Director of Risk Management	XVI	1	1	1	1	1	1
Sr. Risk Management Analyst	XIV		1	1	1	1	1
Risk Management Analyst	XII	2	2	2	2	2	2
Program Specialist	X	1	1	1	1	1	1
Accounting Control Specialist	VIII	1					
Total Positions		5	5	5	5	5	5